



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

OCT 3 2000

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 8473
(FOURTH REVISION)

EXPIRATION DATE: September 30, 2002

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Eurotainer SA, Paris, France
(U.S. Agent: Eurotainer US, Inc., Somerset, NJ)

(See Appendix A for a list of additional grantees)
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of a Division 6.1 poisonous liquid in a non-DOT Specification IMO Type 5 portable tank. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.244 in that a non-DOT specification IMO Type 5 portable tank is not authorized except as provided herein.
5. BASIS: This exemption is based on the application of Eurotainer SA dated September 6, 2000, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Acrolein, inhibited	6.1	UN1092	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification portable tank, mounted in an ISO frame, designed and constructed in accordance with WEW drawings CE-526/0 and CE-526/3 dated January 18, 1980, technical specifications and calculations on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA), and in compliance with the following:

- (1) Code--Complies with ASME Code (not marked)
Note: The welded guided-bend test prescribed in paragraph UHA-108 of the ASME Boiler and Pressure Vessel Code, Section VIII, Division 1 shall be conducted for each heat of material used for the construction of these portable.

- (2) Insulation--2 inches glass wool covered with 0.04 inch stainless steel jacket.

- (3) Water Capacity (U.S. Gallon)--5,020

- (4) Material--DIN 1.4541 German steel-equivalent to ASME SA 240 Type 321 including requirements for titanium content.

- (5) Tank Size (inches) (outside dia.) x (length) x (thickness)
82.68 228.35 0.2756

Head Thickness--0.3740

Weld Joint Efficiency--0.9 (shell), 1.0 (head)

Corrosion Allowance--0.0

- (6) Design Pressure (PSIG)--100

Note: Design pressure means "maximum allowable working pressure (MAWP)" as used in the ASME Code.

- (7) Test Pressure, Minimum (PSIG)--150

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(8) Openings--One (1) 20 inch diameter manhole containing the compressed gas inlet connection, test discharge connection, thermometer connection and filling/discharge connection; safety relief device discharge pad on top; no bottom outlets

(9) Tank surface area (square feet)--457

(10) Safety Relief Devices--one (1) 3 inch diameter spring loaded safety relief valve outboard of and in series with a 3 inch diameter rupture disc both set at 110 psig. Minimum relief device capacity is 286,000 SCFH

(11) G-Loadings: Vertical down 2; Vertical up 2; Longitudinal 2; and Transverse 1.

(12) Maximum Gross Weight (pounds)--52,910

(13) Maximum Commodity Weight (pounds)--41,115

(14) Tare Weight (pounds)--11,795

(15) Design Specific Gravity--0.98

b. TESTING -

1. Hydrostatic test certificates for each tank must be maintained by the owner or manufacturer at its principal business office and be made available to any DOT representative upon request.

c. OPERATIONAL CONTROLS -

1. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 8473".

2. Each portable tank must be plainly marked on both sides near the middle, in letters at least four inches high on a contrasting background "ACROLEIN".

3. The tank must be filled so as not to be liquid full at less than or equal to 130°F.

4. Each tank must be (i) visually inspected prior to each trip to insure that it has not been damaged on the previous trip; (ii) visually inspected at least once every 2-1/2 years in accordance with the provisions of 49 CFR 177.824;

and (iii) pressure tested at least once every 5 years, at one and one-half times the design pressure.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel.

10. MODAL REQUIREMENTS:

a. A copy of this exemption must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this exemption.

b. Portable tanks may not be transported in Container-on-flatcar (COFC) or Trailer-on-flatcar (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration.

c. Motor carriers used to transport packages in accordance with the terms of this exemption must have a "Satisfactory" or "Conditional" safety rating as prescribed in 49 CFR Part 385.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Registration required by § 107.601 et seq., when applicable.

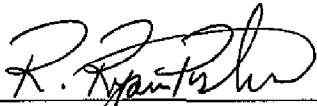
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in

addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

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